

TrackServ

TERMS AND CONDITIONS

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1. Definitions

The term "Platform" refers to the TrackServ web and mobile platform. The term "User" refers to all individuals who make use of TrackServ. The term "Service Market" refers to the area where businesses can advertise services available. The term "Advertiser" refers to any business or organisation which purchases advertising space on the Service Market.

2. Acceptance of Terms

Upon opening an account or making use of TrackServ, the user agrees to abide by these Terms and Conditions.

3. About TrackServ

TrackServ is a civic engagement platform enabling citizens to report municipal infrastructure and environmental issues and upload images and location details, as well as monitor the development status of such reports. It was developed as a result of a need for improved community and municipality communication, as described in the TrackServ Business Analysis document.

4. Free Use of the Platform

There is no charge for submitting municipal issue reports. Users can create an account, submit reports, upload supplementary information, track developments, receive notifications and do this without subscribing to a monthly subscription.

5. User Accounts

Users have full responsibility for ensuring that they keep their log-in details confidential and must advise TrackServ immediately should they become aware of any unauthorised usage.

6. User Responsibilities

Users are obliged to provide accurate information, refrain from submitting false or malicious reports, respect fellow users and adhere to the laws of South Africa.

7. Anonymous Reporting

Reporters' identities will not be disclosed to the public. Personal data will only be processed by TrackServ for genuine platform-related reasons and/or follow-ups.

8. Service Market

Businesses and organisations are able to advertise goods, products and services relevant to the community through the Service Market.

9. Advertising Subscriptions

Subscription fees apply to Advertisers who wish to promote products, goods or services in the Service Market; however, there is no cost to community members to submit complaints or issues.

10. Government Licensing

Subject to a written agreement regarding the terms of sale, lease or licence, TrackServ may be licensed, leased or sold to municipalities or other governmental entities for the purposes of implementation, maintenance, support and customisation.

11. Intellectual Property

Unless specifically provided for in a written agreement, all designs, branding, documentation, content and software rights remain vested in TrackServ.

12. Privacy (POPIA)

TrackServ is fully committed to protecting citizen privacy and intends to process personal information in compliance with the Protection of Personal Information Act, 2013 (POPIA), where applicable.

13. Availability

While best efforts are made to ensure continuous operation of the Platform, uninterrupted access cannot be guaranteed.

14. Limitation of Liability

TrackServ acts merely as a facilitator for complaint submission and accepts no liability for delays caused by municipal responses, third-party services or indirect damages resulting from use of the Platform.

15. Suspension and Termination

In cases of abuse, fraud, illegal activities or repeated breaches of these Terms and Conditions, TrackServ reserves the right to temporarily suspend or permanently terminate user accounts.

16. Amendments

These Terms and Conditions may be revised from time to time. Continued use of the Platform after amendments have been published will constitute acceptance of the revised Terms and Conditions.

17. Governing Law

These Terms are subject to the laws of the Republic of South Africa.

18. Contact Information

Email: